

		fail to state specifically how the terms of the attached agreement are incomplete or insufficiently definite. <u>Breach of Settlement Agreement</u> Defendants argue Plaintiff fails to establish that “payment was due and owing under enforceable conditions” and that “any alleged delay or nonpayment may be excused or subject to conditions precedent.” Defendants’ conclusory contentions lack analysis and citation to supporting evidence. Nevertheless, the Court agrees. While Plaintiff has established Defendants did not pay the settlement amount within 45 days of the agreement (see Shabini Decl. [Supplemental], ¶ 4), the agreement contains the following condition precedent: “20. <u>Condition Precedent – Dismissal</u>. Plaintiff acknowledges and agrees that a condition precedent to the receipt of the Settlement Amount is the full execution of this Agreement and the filing of a Request for Dismissal with prejudice of the entire action identified as Case No. 30 2022-01263671-CU-PO-CJC. <i>Defendants shall have no obligation to make any payment under this Agreement until such dismissal has been filed and confirmed.</i>” (See Shabini Decl., ¶ 3, Ex. 1, ¶ 20 [emphasis added].) To date, Plaintiff has not filed a Request for Dismissal as agreed. Therefore, Plaintiff has failed to satisfy a condition precedent. <u>Interest</u> Lastly, Defendants argue Plaintiff seeks interest and expanded relief not clearly set forth in the agreement. This argument is well taken. Plaintiff seeks interest of 10% per annum from the date of the breach, which is a request for prejudgment interest. However, the settlement agreement does not contain a provision for prejudgment interest. Therefore, there is no basis for awarding prejudgment interest. (See <i>Greentree Financial Group, Inc. v. Execute Sports, Inc.</i> (2008) 163 Cal.App.4th 495, 502 [reversing award of prejudgment interest not provided for in § 664.6 agreement: “The \$20,000 settlement sum in the stipulation (of entry of judgment) is unallocated, and may or may not have included . . . prejudgment interest. We find no basis for awarding . . . prejudgment interest in addition to the stipulated settlement sum.”].) The motion is DENIED.
6	24-01394637 <i>Dubai Holdings, LLC vs. Taifour</i>	Motion to Be Relieved as Counsel of Record The motion of attorney Ira Frzer to withdraw as attorney of record for Defendant Mahammad Taifour is GRANTED. (Code Civ. Proc. § 284, Cal. Rules of Court, rule 3.1362.) Attorney will be relieved as counsel of

		record for client effective upon filing of a proof of service of the signed order on client. Moving attorney is to give notice.
8	23-01361430 <i>Garcia vs. Ross Dress for Less, Inc.</i>	Motion for Summary Judgment and/or Adjudication Defendant Ross Dress for Less, Inc.’s Motion for Summary Judgment is DENIED. “In order to establish liability on a negligence theory, a plaintiff must prove duty, breach, causation and damages. [¶] A store owner exercises ordinary care by making reasonable inspections of the portions of the premises open to customers, and the care required is commensurate with the risks involved.” (<i>Ortega v. Kmart Corp.</i> (2001) 26 Cal.4th 1200, 1205 [cleaned up].) Defendant failed to satisfy its burden of disproving the element of breach of duty in Plaintiff’s claims. Defendant provides evidence of its employees swept the area where the incident occurred within at least 10 minutes of the accident occurring and there was no liquid on the ground. However, Defendant admits the liquid excreted from a small ball which was on the ground. (UMF 11.) Defendant does not establish for the purposes of its summary judgment motion when the ball was moved to the area around the incident. Further, viewing the evidence in a light most favorably to Plaintiff as the non-moving party, there is a dispute of material fact as to whether the ball itself constituted a tripping hazard which should have been removed by Defendant’s employee. Therefore, summary judgment and summary adjudication as to the causes of action for negligence and premise liability are denied.
9	25-01486648 <i>Ghadiri vs. Floor and Decor Outlets of American, Inc.</i>	Motion to Compel Further Responses to Form Interrogatories Defendant Floor and Décor Outlets of America, Inc.’s Motion to Compel Further Responses to Form Interrogatories is DENIED as moot. Defendant’s request for sanction is GRANTED in the reduced amount of \$1,343.33 against Plaintiff and his counsel of record, jointly and severally. Plaintiff provided supplemental responses on March 12, 2026 which substantively changed the responses. Thus, Defendant’s motion is moot. <u>Sanctions</u> “The court shall impose a monetary sanction under Chapter 7 (commencing with Section 2023.010) against any party, person, or attorney who unsuccessfully makes or opposes a motion to compel a further response to interrogatories, unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust.” (Code Civ. Proc., § 2030.300(d).)